

North Carolina youthful-conviction filing guide

Correct participant petition and court

Prepared for Alexandria Lee Montgomery Example. Use AOC-CR-293 Rev. 3/25 under G.S. 15A-145.8A in the Superior Court Division in Wake County, the court of conviction. Read the attached exact official AOC-CR-293 instructions. AOC-CR-296 is a district attorney form under a different statute and is not part of this packet. AOC-CR-294 is the district attorney counterpart; this is the participant petition.

Check every supplied fact before personal execution

The offense date must be before December 1, 2019 and you must have been 16 or 17 then. Confirm the exact dates from birth and court records; seek legal assistance near the eighteenth-birthday or December 1 boundary. The official record must establish each listed class: non-traffic misdemeanor, Class H or Class I felony, with no exclusion under G.S. 15A-145.8A(b). LegalEase does not determine offense class or legal exclusions.

SYNTH-17CRS000002: supplied official-record class H; offense 06/10/2017; age 17. Supplied answers confirm active sentence, probation and post-release supervision complete, no restitution order and no outstanding civil restitution judgment.

SYNTH-17CRS000003: supplied official-record class I; offense 06/10/2017; age 17. Supplied answers confirm active sentence, probation and post-release supervision complete, no restitution order and no outstanding civil restitution judgment.

Record review remains required before filing. Obtain and compare the certified court file, sentence/probation/post-release completion evidence and restitution records before signing. Pending procurement does not prevent this draft.

Court findings remain blank. Do not sign an untrue statement or claim service has happened before actual service. Sign and date the petition personally only after review and required service; this source petition has no notarial block.

Obtain and compare the SBI right-to-review record

Request a right-to-review copy of your own North Carolina criminal history from the State Bureau of Investigation (SBI). Compare the offense class and offense date for each conviction against that SBI record and the court file. Correct this packet before filing if your answers disagree with those records; ask for legal help if the class or exclusion is uncertain. Obtain the court file from the clerk, and the judgment and probation/post-release completion documentation from the clerk or supervising office. This record procurement is a before-filing task and does not prevent preparation of a draft.

Agency and offense inventory

List the arresting agency and other North Carolina state/local agencies holding the case with complete addresses. Do not list courts, SBI, Department of Adult Correction, DMV or private companies; the official form explains their notification channels. Check all agencies/offenses against the court file. If more than 3 agencies or 6 offense rows are required, use official AOC-CR-285 and check the attachment box; do not omit records to fit this packet. This fixture has no overflow attachment.

Fee and requested indigency affidavit

The attached current issuer instruction sets a \$52.50 filing fee, unless indigent. Confirm payment method and local submission procedure with the clerk. You requested AOC-CV-226, included with your supplied financial facts. Review all totals, income, expenses, assets and liabilities. Sign its affidavit only before the authorized oath administrator; leave the signature, date and jurat blank until actual execution. A request is not approval.

Serve the district attorney and request a hearing

Serve a copy of the petition on the district attorney at least 30 days before the hearing. Ask the clerk or district attorney to schedule the hearing and confirm the exact service destination and permitted method. Use the source certificate only after actual personal delivery, mail, permitted office delivery or authorized email/ICMS service. Record the real method, recipient and date then; no completed service is generated. DA acceptance, prosecutor initials, victim-contact statements, objections, findings, order and clerk certification belong to those officials and remain blank. Bring the records supporting your supplied facts to the hearing.

North Carolina youthful-conviction filing guide

When self-help must stop

Obtain legal help for uncertain age/date boundaries, Class A through G felonies, any subsection (b) exception, traffic classification, restitution orders or outstanding civil restitution judgments, incomplete sentence/probation/post-release obligations, or any immigration question. The court determines eligibility and relief; this draft makes no court finding.

Keep the entered order and follow up

If granted, the clerk sends certified copies to you and the official agencies identified in the source instructions. Keep your certified order permanently and notify the clerk in writing if your address changes: after expunction, the case file and order may be destroyed and the clerk cannot replace them. A court order does not guarantee immediate removal from every private database. Follow the attached issuer instructions for contacting the private provider and originating government agency.

Synthetic review fixture: do not file these sample facts.